

established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.)

Negligence Claims Against a School District

Plaintiff's (remaining) claims against Defendant SAUSD include negligence, negligent supervision, and negligent retention/hiring. (See ROA 2 [Complaint], 48 [12/13/24 Minute Order].) Plaintiff alleges Defendant SAUSD was negligent in its supervision of Plaintiff (by failing to keep co-defendant, Lee Dinnie Henry, away from Plaintiff), and in providing reasonable supervision and retention of Defendant Henry. (See Compl. at ¶¶ 40, 42-43, 71.)

A “school district and its employees have a special relationship with the district’s pupils[.]” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 869.) However, a special relationship, alone, does not create liability for a school district because tort liability for governmental entities must be based on statute. (Guerrero v. South Bay Union School Dist. (2003) 114 Cal.App.4th 264, 268.)

Pursuant to Government Code section 815, subdivision (a), a public entity is not liable for an injury whether such injury arises out of an act or omission of the public entity or a public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815.) A public entity “is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2, subd. (a).) A public employee “is liable for injury caused by his act or omission to the same extent as a private person.” (Gov. Code, § 820.) “Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.” (Gov. Code, § 815.2, subd. (b).) “In other words, ‘the general rule is that an employee of a public entity is liable for his torts to the same extent as a private person (§ 820, subd. (a)) and the public entity is vicariously liable for any injury which its employee causes (§ 815.2, subd. (a)) to the same extent as a private employer (§ 815, subd. (b)).” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 868, citation omitted.)